

Justification Review Document
for an Exception to Fair Opportunity – FAR 16.505(b) JA-25-B-0142)

Program/Equipment: [REDACTED] for the manufacture of [REDACTED] during the
Prototype Maturation Phase, on behalf of [REDACTED]
[REDACTED]

Authority: 10 United States Code (U.S.C.) 3406(c)(2) as implemented in Federal Acquisition Regulation (FAR) 16.505(b)(2)(i)(B) – Only one awardee is capable of providing the supplies or services required at the level of quality required because the supplies or services ordered are unique or highly specialized.

Amount: [REDACTED]

Prepared by:

Typed Name: [REDACTED] DSN: [REDACTED]

Title: [REDACTED] Date: 13 January 2025

E-mail: [REDACTED]

Contracting Officer:

Typed Name: [REDACTED] DSN: [REDACTED]

Date Reviewed: 22 January 2025 E-Mail: [REDACTED]

Technical Representative:

Typed Name: [REDACTED] DSN: [REDACTED]

Title: [REDACTED] Date Reviewed: 21 January 2025

Requirements Representative:

Typed Name: [REDACTED] Email: [REDACTED]

Title: [REDACTED] Date Reviewed: 14 October 2024

Justification for an Exception
to Fair Opportunity Under FAR 16.505(b)(2)

1. Contracting Activity: Army Contracting Command – Aberdeen Proving Ground (ACC-APG), Division B, Tactical Radios Branch, CCAP-CCB, 6565 Surveillance Loop, building 6001, Aberdeen Proving Ground, MD 21005-1846.

2. Description of Action: [REDACTED]
request approval to award a firm-fixed price (FFP) delivery order under contract [REDACTED] for a supplemental buy to procure items which are ancillary to enable the integration of [REDACTED] from the original equipment manufacturer, [REDACTED]. The proposed source is [REDACTED]. Award will be made to [REDACTED]. Supplemental Buy Clause, contract vehicle, a Multiple Award (MA) Indefinite Delivery-Indefinite Quantity (IDIQ) contract, but without a fair opportunity being provided to both contract holders on the MA IDIQ. These [REDACTED] are essential for the separate, but interrelated award for the manufacture of [REDACTED] as further outlined below in paragraphs/sections 3 and 5. Utilizing Fiscal Year 25 research and development funds (RDTE), is to aim to expedite manufacturing upon [REDACTED] and meet the [REDACTED]. The anticipated modification award as a supplement buy on delivery order [REDACTED].

3. Description of Supplies/Services: The Government requires the purchase of [REDACTED]
[REDACTED]
[REDACTED], as described below. This [REDACTED]
[REDACTED]. The [REDACTED]
[REDACTED] that provides secure communications for the U.S. Army. It's a [REDACTED]
[REDACTED] that can operate in congested environments. The [REDACTED] is part of the [REDACTED]
[REDACTED]. It has a frequency range [REDACTED] is used by [REDACTED]
[REDACTED], is used to [REDACTED]
[REDACTED] can execute [REDACTED] including [REDACTED]
[REDACTED]. It is further able to [REDACTED]
[REDACTED]. This [REDACTED] will be delivered in [REDACTED]. The associated CLINs placed on contract that are applied to the [REDACTED]. The estimated [REDACTED]

amount cost to [REDACTED] This was derived through the compilation of [REDACTED] for the Manpack IDIQ MAC.

4. Authority Cited: 10 United States Code (U.S.C.) 3406(c)(2) as implemented in Federal Acquisition Regulation (FAR) 16.505(b)(2)(i)(B) – Only one awardee is capable of providing the supplies or services required at the level of quality required because the supplies or services ordered are unique or highly specialized.

5. Reason for Authority Cited:

Background: [REDACTED] was proposed as part of the overall system of systems solution by [REDACTED] requirements. The ancillary items listed in Section 3 are essential in the overall operation of the [REDACTED]

[REDACTED] which is tied to the Army's 2030 initiatives and [REDACTED].

It was determined that [REDACTED] and thus [REDACTED] technical requirements were centric to enabling the complete integration and interoperability with existing [REDACTED]. Key related requirements included:

- The ability to integrate into the [REDACTED]
- Provide a user-friendly integration with the [REDACTED]
- Meet the tactical communications needs of the [REDACTED]

Rationale: As a Middle Tier Acquisition (MTA) program, [REDACTED] The [REDACTED] supports the Army's 2030 initiatives and [REDACTED]. During the prototyping phase, [REDACTED]. After assessing the form, fit and function of the [REDACTED], the conclusion was that [REDACTED] was more suitable for [REDACTED]. Given the need to support the cutting-edge technology in our systems, [REDACTED]. The decision was based on a thorough competitive evaluation process, ensuring that the most suitable and reliable radio solution was chosen for the [REDACTED]. To maintain a rapid development pace, the program cannot afford the cost and schedule impacts to re-engineer the prototype systems to accommodate both [REDACTED].

As noted, the [REDACTED]. The [REDACTED], who also holds a place on the aforementioned MA IDIQ. Although the [REDACTED] contractors on the MA IDIQ. Although the [REDACTED]

These issues are similar for all [REDACTED]. Thus, [REDACTED]

The cost of integration would [REDACTED]

Additionally, [REDACTED]. The need for more connections, cables, mounts, equipment, and programming our sophisticated hardware to work with [REDACTED] would delay the manufacturing of the required systems. Finally, as noted above, the [REDACTED] were proposed as part of the overall system of systems solution [REDACTED] requirements. [REDACTED] and must be allowed to implement its overall solution using the components proposed.

6. Efforts to Obtain Competition: In accordance with (IAW) the exception found at FAR 5.202(a)(6), notice of this proposed action is not necessary as the proposed Delivery/Task Order action is an order placed under subpart 16.5. IAW FAR 16.505(b)(2)(ii)(D), within 14 days after placing an order exceeding the simplified acquisition threshold that does not provide for fair opportunity in accordance with 16.505(b), the contract officer shall publish a notice IAW FAR 5.301 and make this justification publicly available.

a. Effective competition. Effective competition at the delivery/task order level is not possible for this requirement for the reasons outlined in paragraph 5.

b. Subcontracting competition. [REDACTED] MA IDIQ contract has a subcontracting plan incorporated. Any clauses from the base contract, such as FAR 52.244-5, Competition in Subcontracting, FAR 52.219-8, Utilization of Small Business Concerns, FAR 52.219-9, Small Business Subcontracting Plan, that are applicable to the proposed delivery/task order to be issued, will be enforced.

7. Actions to Increase Competition: [REDACTED] will continue to pursue developmental efforts to integrate [REDACTED] into their prototypes following its transition to rapid fielding. To meet Middle Tier Acquisition (MTA) timelines associated with rapid

prototyping, and the aforementioned form and fit issues with integrating [REDACTED], efforts to increase competition cannot be introduced until rapid fielding or LRIP commences. This future developmental effort for integration [REDACTED] to align the future fielded systems with the intended units [REDACTED]

8. Market Research: IAW the published [REDACTED] market research report, Industry was asked to provide responses and recommendations to three (3) RFIs posted on FedBizOps Solicitation. Posted questions discussed current Unified RF/Compute capabilities, feedback on requirements and Concept of Employment (CONEMP), and proposed solutions based on Ground Station Reference Architecture Design Guide. RFI and contracting objectives were also presented during two (2) [REDACTED] Industry Days hosted by [REDACTED]. Finally, the PM conducted One-on-One meetings with approximately 15 Industry Partners after Industry Day #2. [REDACTED] were selected to proceed into [REDACTED]

[REDACTED] During this full and open competition, [REDACTED] competed their technical solution for [REDACTED] (The only other manpack technical solution). [REDACTED]

[REDACTED] This market research, combined with the full and open competition evaluation results resulted in [REDACTED]

[REDACTED] The [REDACTED] is requesting to purchase off [REDACTED]

[REDACTED] are the same form, fit and function as [REDACTED], as these are Non-Developmental-Item (NDI) [REDACTED]. The [REDACTED] has not changed in Form, Fit and Function during the course of these past 5 years. Further, recent Open-Source Market Research efforts in 2024 conducted by [REDACTED] still meet the [REDACTED] needs by utilizing [REDACTED]

[REDACTED] for audio, serial control and USB functions, so the lack of those [REDACTED] would force a major [REDACTED] redesign effort. Additionally, the control interface of the [REDACTED] cannot be used with the [REDACTED]

[REDACTED] again causing more redesign if trying to interface [REDACTED]. The [REDACTED] are different, the weights [REDACTED] are different. These issues are similar for all the [REDACTED]. Additionally, in preparation for a [REDACTED], new market research was conducted investigating industries' state of [REDACTED] capabilities. The Government received 12 submissions. The conclusion was [REDACTED]

[REDACTED] is the only viable solution at this time that meets all the [REDACTED] of systems requirements.

9. Other Facts: N/A

a. Procurement history.

Delivery Order	FRP	Value	Date	Full and Open
[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]	Yes

The diagram shows a 3D grid of small cubes. A central vertical column of cubes is highlighted in white, representing a specific region of interest. The surrounding cubes are black, indicating a different material or state. The grid is bounded by a thin white line on the left and right sides.

b. Other Facts. N/A

I certify that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

Signature: _____ Date: _____

Typed Name: [REDACTED] Title: [REDACTED]

I certify that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

Signature: _____ Date: _____

Typed Name: [REDACTED] Title: [REDACTED]

I hereby determine that the anticipated cost to the Government for this contract action will be fair and reasonable.

The ancillary items required in support of the [REDACTED] include the purchase of [REDACTED]

The pricing was determined fair and reasonable

at award time of the basic IDIQ contract supporting [REDACTED] under contract [REDACTED] with established pricing schedule for 10-year PoP. The IDIQ was a full and open completion requirement. The [REDACTED] under delivery order [REDACTED] awarded 11 September 2024. The [REDACTED] IAW FAR 15.403(b)(1) Certified cost or pricing data exception "When the Contracting Officer determines that prices agreed upon are based on adequate price competition". The MA IDIQ was a full and open solicitation with at least two responsible offerors. This resulted in adequate price competition as specified in FAR 15.403-1(c)(1)(A)

Signature: [REDACTED] Date: [REDACTED]

Typed Name: [REDACTED] Title: [REDACTED]

13. Contracting Officer Certification:

I certify that this justification is accurate and complete to the best of my knowledge and belief.

Signature: [REDACTED] Date: [REDACTED]

Typed Name: [REDACTED] Title: [REDACTED]

[REDACTED]

[REDACTED] the foregoing justification, I hereby approve the procurement [REDACTED]
[REDACTED]
[REDACTED] The estimated price of [REDACTED] an other than full and open competition basis pursuant to the 10 U.S.C. 3406(c)(2) as implemented in Federal Acquisition Regulation (FAR) 16.505(b)(2)(i)(B) – Only one awardee is capable of providing the supplies or services required at the level of quality required because the supplies or services ordered are unique or highly specialized. The proposed action is subject to availability of funds, and provided that the services and property herein described have otherwise been authorized for acquisition.

Signature: [REDACTED] Date: [REDACTED]

Typed Name: [REDACTED] Title: Contracting Officer